

Vehicle Code § 11710 requires a licensed motor vehicle retail dealer to procure and file a bond in the amount of \$50,000. When a person suffers a loss due to the dealer's fraud, that person has a right of action against the dealer and surety on the bond in an amount not to exceed the value of the vehicle purchased. (Vehicle Code § 11711(a); *Pierce v. Western Surety Co.* (2012) 207 Cal.App.4th 83, 86.)

The Complaint alleges Plaintiff suffered a loss due to fraudulent representations, failures to disclose, and/or statutory violations of the Dealer and its representatives during the sale of the vehicle to Plaintiff. (Compl. ¶ 33.) Defendants assert that while this cause of action is not directed at the Dealer, it is based on the prior cause of action (1st c/ac; the 2nd c/ac was dismissed.) Defendants argue that this cause of action fails for the same reasons as the 1st cause of action fails. As a result, there is no fraud claim, nor violation of CLRA. This means the dealership bond is not triggered, and there is no cause of action against the Surety.

Based upon the foregoing, Defendants Aaron Chrysler Dodge Jeep Ram and the Ohio Casualty Insurance Company are entitled to summary adjudication of the 1st and 3rd causes of action in their favor. Because plaintiff dismissed the second cause of action in June 2024, the granting of summary adjudication disposes of the entire case.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2307012	VIDAL VS PROHAS ENTERPRISES	MOTION LEAVE TO CONDUCT MENTAL EXAMINATION BY EDITH REBECCA PAREDES, ERIC EMMANUEL PAREDES

Tentative Ruling:

The Court **OVERRULES** Plaintiffs' objections in full. The Court **GRANTS** the motion for a neuropsychological examination subject to a protective order. The Court **DENIES** Plaintiffs' requests to limit the scope of the examination (i.e., number of tests). The Court **DENIES** Defendants' request to prohibit Plaintiffs from audio recording the interview and examination. The Court **DENIES** Defendant's request to limit the release of raw data (test data and materials) to only a licensed psychologist. Defendants shall release the test data and materials to Plaintiffs' counsel. The Court **DENIES** Plaintiffs' counsel's request to attend the interview portion of the examination.

Evidentiary Objections

Plaintiffs object to certain statements in, and exhibits attached to, Dr. Boone's declaration, citing hearsay, lack of personal knowledge, and lack of authentication. The Court **OVERRULES** Plaintiffs' evidentiary objections in full, as these statements and

exhibits are proper subjects for expert testimony under Evid. Code § 801(b), which also permits an expert to rely on hearsay in forming an opinion.

Analysis

In personal injury actions, a defendant may demand one physical examination of the plaintiff without leave of court. (C.C.P. § 2032.220.) The examination must be limited to the condition in controversy. (C.C.P. §2032.020(a).) However, a mental exam is only available upon filing a motion with the court on good cause. (C.C.P. §§ 2032.310(a), 2032.320(a).)

In cases of a mental exam, only a licensed physician or a licensed clinical psychologist who holds a doctoral degree in psychology and has had a least five years of postgraduate experience in the diagnosis of emotional and mental disorders, may perform the exam. (C.C.P. § 2032.020(c)(1).) The motion must specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty of the person(s) performing the exam. (C.C.P. § 2032.310(b).) The order issued by the court must “specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (C.C.P. § 2032.320(d).)

Here, the notice and motion sufficiently specify that the neuropsychology examination will take place on August 24, 2026, at 9:30 a.m. at 24564 Hawthorne Blvd., Suite 208, Torrance, California 90505, and will be conducted by Dr. Kyle Boone, PhD, who is a psychologist. Although Plaintiffs argue that Defendants should be required to identify the exact tests to be administered rather than 33 potential tests that would be unduly burdensome and harassing, Dr. Boone attests that she “typically conduct[s] 12 to 20 tests in an examination” and “will determine which tests I need to do based on the interview.” (Boone Decl., ¶ 8.) Because there is no evidence that Dr. Boone will administer all 33 potential tests, including all the 10 malingering-only tests that Plaintiffs object to, Plaintiffs’ argument is unpersuasive.

Given the above, the motion meets the statutory requirements of C.C.P. § 2032.310(b).

A. Raw Data

The issue of raw data has been addressed in two cases. In *Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 257, the defendant sought a neuropsychological exam, and the trial court allowed the audio recorded exam, but declined to allow the plaintiff a copy of the testing materials due to copyright infringement. The court found that there was neither express statutory authority that allowed nor precluded the disclosure of the testing materials. (*Id.* at 271.) The court found that there was insufficient evidence to support copyright infringement. (*Id.* at 272-273.) The court also stated that there was no explanation for why a protective order could not be issued. (*Id.*

at 274.) The court declined to address the ethical obligations of the neuropsychologist and remanded to the trial court to consider it. (*Id.* at 274-275.)

In *Randy's Trucking, Inc. v. Superior Court of Kern County* (2023) 91 Cal.App.5th 818, the court of appeals addressed this issue. The trial court ordered a mental exam and denied the defendant's request not to provide the raw data. (*Id.* at 824.) The neuropsychologist recused herself because she would not violate her professional and ethical duties to provide the raw data. (*Id.* at 824-825.) The court acknowledged *Carpenter* and that there was no statutory authority permitting or prohibiting the disclosure of raw data. (*Id.* at 834.) The court further acknowledged that the *Carpenter* court did not decide the issue regarding the examiner's ethical and professional obligations but also recognized that the trial court had discretion to order the disclosure. (*Id.* at 835.) The court further acknowledged that the trial court had broad discretion to order the disclosure. (*Id.* at 837.) The court noted the neuropsychologist's concerns but further noted that she failed to explain why a protective order would not address her concerns. (*Id.* at 838.) The court also noted she failed to explain why ethical obligations would be violated based on a court order. (*Ibid.*) The court found that the plaintiff had a right to discovery and to cross-examine the defense experts, which includes the basis for the opinion. (*Ibid.*) Without the raw data, the plaintiff would not be able to scrutinize the expert's opinion and effectively cross-examine her. (*Ibid.*) The court concluded:

Defendants and amici curiae urge us to create a bright-line rule limiting transmission of neuropsychological and psychological testing materials and raw test data, as well as audio recordings of examinations, to licensed neuropsychologists or psychologists. They contend without a rule requiring expert-to-expert transmission of these materials, the integrity and security of neuropsychological and psychological tests will be compromised. The Legislature, however, has not codified the expert-to-expert limitation advocated by defendants and amici curiae....We recognize there are concerns that a protective order is insufficient to protect test security and that no neuropsychological or psychological expert will comply with such an order. These concerns, however, are better expressed to the Legislature, which is empowered to create evidentiary rules limiting the transmission of discovery materials.

(*Id.* at 848.)

Notably, one of the neuropsychologists who declined to be retained after the defendant's expert recused herself in *Randy's Trucking* was Dr. Boone, who now serves as Defendants' expert. (*Randy's Trucking, supra*, 91 Cal.App.5th at 828.) Accordingly, *Randy's Trucking* is directly on point, as it addresses many of the same arguments that Defendants raise in the instant motion. Specifically, Dr. Boone submits a declaration and exhibits regarding the alleged dangers of turning over the raw data to someone other than a licensed psychologist, including the lack of usefulness to a non-trained person in interpreting the raw data, preserving the novelty and validity of the tests, the

future prospect of “coaching” by attorneys regarding passing the tests, and similar discussions of public harm in other professions.

In *Randy’s Trucking*, the court considered and rejected the argument that an untrained person could not interpret the raw data, stating:

While defendants assert plaintiffs’ attorneys could not interpret the test materials, they would not necessarily be required to do so to use the materials for purposes of cross-examination, since disclosure of these materials may help to protect against abuse and disputes over what transpired during the examination. As the court explained in *Goffland*, the purpose of audiotaping the examination is ‘to ensure that the examiner does not overstep the bounds set by the court for the mental examination, that the context of the responses can be judged for purposes of trial, that the examinee’s interests are protected (especially since the examinee’s counsel ordinarily will not be present), any that any evidence of abuse can be presented to the court.’ (*Goffland*, *supra*, 108 Cal.App.4th at p. 750.) Without plaintiffs’ access to the audiotape and raw data, plaintiffs cannot adequately protect these interests.

(*Randy’s Trucking, Inc.*, *supra*, 91 Cal.App.5th at 838.)

Defendants then refer to a declaration signed by 227 clinical neuropsychologists located throughout the entire state of California regarding the protection of psychological test materials (“Collective Statement”). (Boone Decl., Exh. I.) However, the Collective Statement does not specifically address audio recordings. Further, while the Collective Statement indicates the 227 declarants would not agree to release protected test information, no information is provided to determine if this is a consensus in the clinical neuropsychologist community. The Collective Statement also relies heavily on *Detroit Edison v. NLRB* (1979) 404 U.S. 301, arguing that the United States Supreme Court has precluded the production of such testing materials. (Boone Decl., Exh. I, ¶ 10.) However, the *Randy’s Trucking* court addressed *Detroit Edison* in its reasoning, stating: “the Supreme Court did not hold that courts should prohibit disclosure of psychological testing materials or data. Rather, the Supreme Court, recognizing the importance of maintaining test security, found the protective order the board issued was insufficient to protect that security because it could not be enforced against the union if the union were to violate it.” (*Randy’s Trucking, Inc.*, *supra*, 91 Cal.App.5th at 840.) The *Randy’s Trucking* court further stated that unlike *Detroit Edison*, the protective order in that matter was sufficient because it could “be enforced against plaintiffs’ attorney if he or his staff were to violate it by contempt or other sanctions.” (*Ibid.*)

Defendants attempt to distinguish *Randy’s Trucking* by relying on *Elatar v. Omni Rancho Las Palmas LLC* (C.D. Cal. 2025) 2025 WL 3049846 at *1, fn. 2, which found that the Collective Statement specified the likely harms of producing raw psychological test data. (Motion, p. 18.) However, the *Elatar* court expressly noted that “[t]his is a

federal action subject to the Federal Rules of Civil Procedure, not a state action subject to California's procedural rules. *See, e.g., Carpenter v. Super. Ct.* (2006) 141 Cal. App. 4th 249, 263 (distinguishing between federal and state procedural requirements in the context of mental examinations and clarifying that 'FRCP rule 35(a) does not require what is required by [California Code of Civil Procedure] section 2032.320....')." (*Elatar, supra*, at *1.) Further, *Elatar* is an unpublished opinion, and as such, Defendants' citation and reliance upon *Elatar* violates California Rules of Court, Rule 8.1115. Accordingly, the Court declines to consider the *Elatar* decision, which is neither binding nor persuasive here.

As to Dr. Boone's arguments regarding potential "coaching" and prior experience with other plaintiffs' attorneys who failed to adhere to protective orders in unrelated cases, there is no evidence here that Plaintiffs' counsel has or will engage in any such coaching or disobey a protective order. Accordingly, these arguments are unavailing.

Dr. Boone then contends that the release of test data will violate ethical codes, including recent resolutions published by the American Psychology Association ("APA") after *Randy's Trucking* was decided. However, Business and Professions Code § 2936 designates only the APA's "Ethical Principles of Psychologists and Code of Conduct" as the official standard of ethical conduct in the practice of psychology in California. The most recent version of the "Ethical Principles of Psychologists and Code of Conduct" allows the release of test data as required by court order, stating in pertinent part:

9.04 – Release of Test Data

- a) The term test data refers to raw and scaled scores, client/patient responses to test questions or stimuli, and psychologists' notes and recordings concerning client/patient statements and behavior during an examination. Those portions of test materials that include client/patient responses are included in the definition of test data . Pursuant to a client/patient release, psychologists provide test data to the client/patient or other persons identified in the release. Psychologists may refrain from releasing test data to protect a client/patient or others from substantial harm or misuse or misrepresentation of the data or the test, recognizing that in many instances release of confidential information under these circumstances is regulated by law. (See also Standard 9.11, Maintaining Test Security .)
- b) In the absence of a client/patient release, psychologists provide test data only as required by law or court order.

(Opp., Exh. J, labeled pg. 864; *see also, Randy's Trucking, supra*, 91 Cal.App.5th at 839, fn. 11 ["We note that standard 9.04 of the APA Ethical Standards, which according to Business and Professions Code section 2936 sets the standard of care for psychologists in California, allows for the release of "test data"... Thus, the ethical standards arguably are not violated where, as here, a court orders release of test data."].) *Randy's Trucking* further noted that although standard 9.11 of the APA Ethical

Standards requires psychologists to “make reasonable efforts to maintain the integrity and security of test materials [defined as manuals, instruments, protocols, and test questions or stimuli] and other assessment techniques consistent with law and contractual obligations, and in a manner that permits adherence to this Ethics Code,” this standard “does not require a psychologist to defy a court order for the purpose of guarding test materials.” (*Randy’s Trucking, supra*, 91 Cal.App.5th at 839, fn. 11.) Thus, there is no evidence that release of the test data and test materials will violate the governing ethical code.

Lastly, Defendants argue that Dr. Boone will recuse herself if the Court does not issue a protective order that complies with their restrictive requests. However, Dr. Boone’s own publication provides recommendations on alternatives to recusal, such as how to proceed with testing if a court orders release of test data and materials prior to the exam. (Boone Decl., Exh. F.)

Given the above, the Court orders the raw data, including test materials, be released to Plaintiff’s counsel pursuant to a protective order.

B. Audio Recording

The statute specifically authorizes recording mental exams, as it states: “[t]he examiner and examinee *shall* have the right to record a mental examination by audio technology.” (C.C.P. § 2032.530(a) [emphasis added].) Case law interpreting the statute has found that the right to record applies to the entire mental examination. (*Golfland, supra*, 108 Cal.App.4th at 750 [“Nothing in the applicable statute suggests that the right of the examiner or examinee is limited to recording only selected parts of the examination.”])

Defendants contend that these recordings should only be given to another neuropsychologist. However, there is no such limit in C.C.P. § 2032.530. Defendants’ expert asserts that allowing this material to be disseminated among non-psychologist threatens the future validity of the test. However, it appears that this issue can easily be addressed through a protective order limiting the access to the recordings to Plaintiffs, their counsel, and their experts and requiring that said recordings be destroyed once this matter is over. Accordingly, Plaintiff may record the mental examinations by audio technology subject to a protective order.

C. Attendance at Examination

Plaintiffs’ counsel requests to be present at the examinations. However, C.C.P. § 2032.530(b) defers to case law in this area by stating, “Nothing in this title shall be construed to alter, amend, or affect existing case law with respect to the presence of the attorney for the examinee or other persons during the [mental] examination.”

Several cases recognize the special need for rapport between expert and examinee during a mental examination (different from that of a physical examination.)

Thus, absent stipulation to the contrary, neither counsel nor court reporters may attend these examinations as their presence might hinder the expert's ability to establish rapport with the examinee and thereby impair the effectiveness of the examination. (*Edwards v. Sup. Ct.* (1976) 16 Cal.3d 905, 910; *Vinson v. Sup. Ct.* (1987) 43 Cal.3d 833, 844-845; *Goffland, supra*, 108 Cal.App.4th at 747-748.) Accordingly, the Court **DENIES** Plaintiff's counsel's request to attend the examination.

Plaintiff's counsel then requests to attend only the "interview" portion before the examination to ensure that the scope of expert questioning is limited, but presents no legal support for this request. In *Vinson, supra*, the Court denied the plaintiff's similar request for her attorney to attend a psychiatric examination to monitor the interview and shield her from inappropriate interrogation if the expert strayed beyond the permitted area of inquiry. (*Vinson, supra*, 43 Cal.3d at 844.) In denying the request for counsel's presence, the Court explained, "Plaintiff's interests can be adequately protected without having her attorney present. In the first place, section 2032 requires the court granting a physical or mental examination to specify its conditions and scope. We must assume, absent evidence to the contrary, that the examiner will proceed in an ethical manner, adhering to these constraints. And if plaintiff truly fears that the examiner will probe into impermissible areas, she may record the examination on audio tape. This is an unobtrusive measure that will permit evidence of abuse to be presented to the court in any motion for sanctions." (*Id.* at 846.) Here, Plaintiff is permitted to audio record the entire interview and examination. Further, the scope of the protective order may be limited. Accordingly, the Court **DENIES** Plaintiff's counsel's requests to attend the interview and examination.